

		Accordingly, Plaintiff is ordered to appear for mental examination with Dr. Anita Herrera Hamilton at a date and place agreed between the parties within 30 days of notice of this ruling. The exam will last for no more than 8 hours, consisting of a psychiatric interview and administration of one or more of the following: Wechsler Intelligence Scale for Children, Fifth Edition (WISC-V); Wechsler Adult Intelligence Scale, Fourth Edition (WAIS-IV); Delis Kaplan Executive Functioning System (D-KEFS); A Developmental Neuropsychological Assessment, Second Edition (NEPSY-2); California Verbal Learning Test, Third Edition; Child and Adolescent Memory Profile (CHAMP); Memory Complaints Inventory (MCI) Beery Buktenica Visual Motor Integration Task, Sixth Edition (Beery VMI); Balance Error Scoring System Dot Counting; ToMM; Green's Memory Symptoms Validity Test; Grooved Pegboard; Finger Tapping Task Medical Symptoms Validity Test; Balance and Error Scoring System; Rey 15-item Rey-Osterrieth Complex Figure; Connor's Continuous Performance Test, Third Edition (Conner's CPT3) Minnesota Multiphasic Personality Inventory, Adolescent (MMPI-A); Wechsler Individual Achievement Test, Fourth Edition; Memory Validity Profile; Adaptive Behavior Assessment System Behavioral Rating Inventory of Executive Functioning, Second Edition (BRIEF2) Behavior Assessment System for Children, Third Edition (BASC- 3), Parent Report Scale; Behavior Assessment System for Children, Third Edition (BASC-3), Self-Report, Child. Any raw data shall be exchanged between experts. The examination may be audio recorded by Plaintiff and Plaintiff's mother, Ms. Carillo may be present during the examination. Ms. Carillo may be interviewed during the examination, but limited to questions about Plaintiff and his history only. Moving party to give notice.
6	Ameris Bank vs. Allied Systems & Controls, Inc.	A) Defendant Allied Systems & Controls, Inc. 1) Form Interrogatories ("FROG") Plaintiff Ameris Bank d/b/a Balboa Capital's ("Plaintiff") unopposed motion to compel Allied Systems & Controls, Inc.'s ("Allied") initial responses to FROG is GRANTED. Plaintiff served FROG on Allied. (Tabor Decl. ¶ 2, Ex. 1.) Allied failed to serve any responses to the FROG by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are late, and Allied has waived any objections thereto. (Civ. Proc. Code § 2030.290(a).) Plaintiff's motion is proper to compel Allied's initial responses to the FROG. (Civ. Proc. Code § 2030.290(b).) Plaintiff requests monetary sanctions against Allied which are permissible. (Civ. Proc. Code §§ 2023.010 and 2030.290(c).) Plaintiff requests \$1,035 for the combined FROG, Special Interrogatory, and Requests for Production motion against Allied. (Tabor Decl. ¶ 6.) The combined motion is largely identical to the combined motion to compel defendant Barrey Stanton Camp's ("Camp") initial responses to those discovery requests, yet Plaintiff

also seeks \$997.50 in monetary sanctions on that combined motion. Further, the two combined motions and the two requests for admission motions each seek one-hour of appearance time (four-hours total) despite the hearing being at the same time. The court will award 0.5 hrs. for appearance against each defendant. Finally, it appears Plaintiff is only seeking one \$60 filing fee on the combined motion despite properly paying \$180 in filing fees as the combined motion is three motions in one. The court will therefore award a reasonable 2.0 attorney hours total across all the combined motions (divisible by six), one hour for appearance fees divided between both defendants, and the \$60 filing fee for each motion. (*PCLM Group, Inc. v. Drexler* (2000) 22 Cal. 4th 1084, 1096.) The reasonable attorney fees on the FROG motion is:

$(\$375/\text{hr.} \times 2 \text{ hrs.}) / 6 \text{ motions} + (\$375/\text{hr.} \times 0.5 \text{ hrs.}) + \$60 \text{ fee} = \$313.10$

Allied is ordered to serve objection-free responses to the FROG and pay monetary sanctions within 15-days of written notice of the ruling.

2) Special Interrogatories ("SPROG")

Plaintiff's unopposed Motion to Compel Allied's initial responses to SPROG is **GRANTED**.

Plaintiff served SPROG on Allied. (Tabor Decl. ¶ 2, Ex. 2.) Allied failed to serve any responses to the SPROG by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are therefore late, and Allied has waived any objections thereto. (Civ. Proc. Code § 2030.290(a).) Plaintiff's motion is proper to compel Allied's initial responses to the SPROG. (Civ. Proc. Code § 2030.290(b).)

Plaintiff also requests monetary sanctions against Allied which are permissible. (Civ. Proc. Code §§ 2023.010 and 2030.290(c).) The appearance fee against Allied was included in the FROG motion (*supra*) and will not be awarded on the other motions against Allied. As noted, the court will award the following reduced monetary award on this motion (*PCLM, supra*, 22 Cal. 4th at 1096):

$(\$375/\text{hr.} \times 2 \text{ hrs.}) / 6 \text{ motions} + \$60 \text{ fee} = \$125.60$

Allied is ordered to serve objection-free responses to the SPROG and pay monetary sanctions within 15-days of written notice of the ruling.

3) Requests for Production ("RFP")

Plaintiff's unopposed Motion to Compel Allied's initial responses to RFP is **GRANTED**.

Plaintiff served RFP on Allied. (Tabor Decl. ¶ 2, Ex. 3.) Allied failed to serve any responses to the RFP by the date the motion was filed. (Tabor Decl. ¶ 5.) The responses are therefore late, and Allied has waived any objections thereto. (Civ. Proc. Code § 2031.300(a).)

Plaintiff's motion is proper to compel Allied's initial responses to the RFP. (Civ. Proc. Code § 2031.300(b).)

Plaintiff also requests monetary sanctions against Allied which are permissible. (Civ. Proc. Code §§ 2023.010 and 2031.300(c).) As noted, *supra*, the court will award a reduced amount of monetary sanctions on this combined motion (*PCLM, supra*, 22 Cal. 4th at 1096):

$(\$375/\text{hr.} \times 2 \text{ hrs.}) / 6 \text{ motions} + \$60 \text{ fee} = \$125.60$

Allied is ordered to serve objection-free responses to the RFP and pay monetary sanctions within 15-days of written notice of the ruling.

4) Requests for Admission ("RFA")

Plaintiff's unopposed Motion to Deem Allied's Responses to RFA as Admitted is **GRANTED**.

Plaintiff served RFA on Allied. (Tabor Decl. ¶ 2, Ex. 1.) Allied failed to serve any responses to the RFA by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are therefore late, and Allied has waived any objections thereto. (Civ. Proc. Code § 2033.280(a).) Plaintiff's motion to deem that RFA as admitted is also proper. (Civ. Proc. Code § 2033.280(b).)

Plaintiff also requests monetary sanctions against Allied which are permissible. (Civ. Proc. Code §§ 2023.030 and 2033.280(c).) This RFA motion is largely identical to the RFA motion against Camp and the court will therefore award a lower than requested amount divided between this RFA motion and Camp's RFA motion. The court will award the following reduced monetary award on each of these motions (*PCLM, supra*, 22 Cal. 4th at 1096):

$(\$375/\text{hr.} \times 1.6 \text{ hrs.}) / 2 \text{ motions} + \$60 \text{ fee} = \$360$

The court hereby deems Allied's responses to the RFA as admitted. Monetary sanctions on this motion are also due within 15-days of written notice of the ruling.

B) Defendant Barrey Stanton Camp

1) FROG

Plaintiff's unopposed motion to compel Camp's initial responses to FROG is **GRANTED**.

Plaintiff served FROG on Camp. (Tabor Decl. ¶ 2, Ex. 1.) Camp failed to serve any responses to the FROG by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are therefore late, and Camp has waived any objections thereto. (Civ. Proc. Code § 2030.290(a).) Plaintiff's motion is proper to compel Camp's initial responses to the FROG. (Civ. Proc. Code § 2030.290(b).)

Plaintiff requests monetary sanctions against Camp which are permissible. (Civ. Proc. Code §§ 2023.010 and 2030.290(c).) Plaintiff requests \$997.50 for the combined FROG, Special Interrogatory, and Requests for Production motion against Camp. (Tabor Decl. ¶ 6.) As noted in the Allied FROG ruling, *supra*, the court has determined a lowered amount of reasonable attorney fees across these six motions to be (*PCLM, supra*, 22 Cal. 4th at 1096):

$(\$375/\text{hr.} \times 2 \text{ hrs.}) / 6 \text{ motions} + (\$375/\text{hr.} \times 0.5 \text{ hrs.}) + \$60 \text{ fee} = \$313.10$

Camp is ordered to serve objection-free responses to the FROG and pay monetary sanctions within 15-days of written notice of the ruling.

1) SPROG

Plaintiff's unopposed Motion to Compel Camp's initial responses to SPROG is **GRANTED**.

Plaintiff served SPROG on Camp. (Tabor Decl. ¶ 2, Ex. 2.) Camp failed to serve any responses to the SPROG by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are therefore late, and Camp has waived any objections thereto. (Civ. Proc. Code § 2030.290(a).) Plaintiff's motion is proper to compel Camp's initial responses to the SPROG. (Civ. Proc. Code § 2030.290(b).)

Plaintiff also requests monetary sanctions against Camp which are permissible. (Civ. Proc. Code §§ 2023.010 and 2030.290(c).) The appearance fee against Camp was included in the FROG motion (*supra*) and will not be awarded on the other motions against Camp. As noted, the court will award the following reduced monetary award on this motion (*PCLM, supra*, 22 Cal. 4th at 1096):

$(\$375/\text{hr.} \times 2 \text{ hrs.}) / 6 \text{ motions} + \$60 \text{ fee} = \$125.60$

Camp is ordered to serve objection-free responses to the SPROG and pay monetary sanctions within 15-days of written notice of the ruling.

2) RFP

Plaintiff's unopposed Motion to Compel Camp's initial responses to RFP is **GRANTED**.

Plaintiff served RFP on Camp. (Tabor Decl. ¶ 2, Ex. 3.) Camp failed to serve any responses to the RFP by the date the motion was filed. (Tabor Decl. ¶ 5.) The responses are therefore late, and Camp has waived any objections thereto. (Civ. Proc. Code § 2031.300(a).) Plaintiff's motion is proper to compel Camp's initial responses to the RFP. (Civ. Proc. Code § 2031.300(b).)

Plaintiff also requests monetary sanctions against Camp which are permissible. (Civ. Proc. Code §§ 2023.010 and 2031.300(c).) As noted, *supra*, the court will award a reduced amount of monetary

		sanctions on this combined motion (<i>PCLM, supra</i>, 22 Cal. 4th at 1096): (\$375/hr. x 2 hrs.) / 6 motions + \$60 fee = \$125.60 Camp is ordered to serve objection-free responses to the RFP and pay monetary sanctions within 15-days of written notice of the ruling. 3) RFA Plaintiff's unopposed Motion to Deem Camp's Responses to RFA as Admitted is GRANTED. Plaintiff served RFA on Camp. (Tabor Decl. ¶ 2, Ex. 1.) Camp failed to serve any responses to the RFA by the date the motion was filed. (Tabor Decl. ¶ 4.) The responses are therefore late, and Camp has waived any objections thereto. (Civ. Proc. Code § 2033.280(a).) Plaintiff's motion to deem that RFA as admitted is also proper. (Civ. Proc. Code § 2033.280(b).) Plaintiff also requests monetary sanctions against Camp which are permissible. (Civ. Proc. Code §§ 2023.030 and 2033.280(c).) This RFA motion is largely identical to the RFA motion against Camp and the court will therefore award a lower than requested amount divided between this RFA motion and Camp's RFA motion. The court will award the following reduced monetary award on each of these motions (<i>PCLM, supra</i>, 22 Cal. 4th at 1096): (\$375/hr. x 1.6 hrs.) / 2 motions + \$60 fee = \$360 The court hereby deems Camp's responses to the RFA as admitted. Monetary sanctions on this motion are also due within 15-days of written notice of the ruling. Plaintiff to give notice.
7	Sullivan v. Strathspey Crown Holdings Group, LLC	Before the Court is a motion to enforce stay pending appeal or, in the alternative, impose a stay pending appeal filed by defendants Strathspey Crown Holdings Group, LLC, Strathspey Crown Holdings, LLC, Robert Grant, and Vikram Malik (collectively, "Defendants"). For the reasons set forth below, the motion is DENIED. "[A]rbitration-related proceedings in California courts are governed by the CAA's procedural rules unless their application is preempted or the parties have expressly agreed that the FAA's procedural rules apply. [Citation.]" (<i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 576.) While the substantive provisions of the FAA apply when a contract involves interstate commerce, "[t]he procedural provisions of the CAA [the California Arbitration Act] apply in <i>California</i> courts by default.... [T]he parties may <i>expressly</i> designate that any arbitration proceeding [may] move forward under the FAA's procedural provisions rather than under state procedural law." [Citation.] Absent such an express designation, however, the FAA's procedural provisions do not apply in state